

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #2	CCRB Case #: 201508606	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/02/2015 3:00 PM	Location of Incident: Barbershop located at 565 Lefferts Avenue	Precinct: 71	18 Mo. SOL 4/2/2017	EO SOL 4/2/2017	
Date/Time CV Reported Fri, 10/02/2015 5:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/09/2015 1:23 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Jonathan Nika	04579	944851	071 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Louis Soland	01678	934195	071 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Jonathan Nika	Discourtesy: PO Jonathan Nika spoke discourteously to § 87(2)(b)				
B.POM Jonathan Nika	Discourtesy: PO Jonathan Nika acted discourteously toward § 87(2)(b)				

Case Summary

- On October 2, 2015, at approximately 3:00 p.m., PO Jonathan Nika and PO Louis Soland responded to a family dispute at a barbershop located at 565 Lefferts Avenue in Brooklyn. During the interaction, PO Nika allegedly told § 87(2)(b) “I don’t have to do this shit (**Allegation A**) and allegedly threw § 87(2)(b)’s identification at his chest (**Allegation B**).

Video Footage

- There is no existing video footage regarding this incident.

Mediation, Civil and Criminal Histories

- Mediation was offered to but rejected by § 87(2)(b)
- As of December 2, 2015, § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 01).
- § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has no prior CCRB complaints (Board Review 03).
- PO Nika has been a member of the NYPD for 8 years and has had three previous CCRB allegations involving one case with no substantiated allegations (see officer history).

Potential Issues

- § 87(2)(b) stated that there were surveillance cameras inside of the barbershop. The manager of the barbershop was contacted on October 27, 2015 in order to obtain surveillance footage regarding the incident. § 87(2)(b) responded to the request on November 12, 2015 stating that video footage is only kept for 30 days and all footage regarding the incident date had been deleted.

Findings and Recommendations

Allegation A -Discourtesy: PO Jonathan Nika spoke discourteously to § 87(2)(b)

Allegation B -Discourtesy: PO Jonathan Nika acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that after he placed a call to 911 for help two officers arrived to the barbershop. § 87(2)(b) § 87(2)(b), corroborated that two officers arrived at the barbershop in response to a call for help made from someone inside of the barbershop. PO Jonathan Nika spoke to § 87(2)(b) who was sitting in a barber chair, regarding an incident involving his child’s mother and asked for his identification. PO Nika asked if he was § 87(2)(b) to which § 87(2)(b) responded “yes I am § 87(2)(b) you have my ID right there.” PO Nika then became angry and allegedly told § 87(2)(b) “I don’t have to do this shit” and threw his identification at his chest which landed on the floor. § 87(2)(b) stated that PO Nika allegedly threw the identification at § 87(2)(b) and told him “I don’t have to help you, take this shit somewhere else” and left the barbershop.

PO Nika stated that he arrived at the barbershop in response to a family dispute. PO Nika spoke with § 87(2)(b) who was sitting in a barber chair, to ask about what had occurred with his ex-girlfriend. § 87(2)(b) was uncooperative and responded that he did not want to fill out a report because police officers always arrest him. PO Nika explained that he was only concerned with his current situation involving his ex-girlfriend. PO Nika asked § 87(2)(b) for his identification which he refused to provide. PO Nika asked § 87(2)(b) to provide his identification approximately 5-10 times before he finally complied. PO Louis Soland stated that § 87(2)(b) was asked for his identification approximately 3-4 times before he finally complied and handed his identification to PO Nika approximately 1-2 minutes later. PO Nika asked § 87(2)(b) for his name and he responded “it’s on the ID.” PO Nika and PO Soland both explained that § 87(2)(b)’s identification card had a hole punched where the printed name was located. § 87(2)(b) refused to stand up from the barber chair to fill out a Domestic Incident Report. He refused to provide a phone number and information for his child’s mother but eventually complied. PO Nika finished the report and handed § 87(2)(b) his identification card, however, § 87(2)(b) refused to remove his hands from under the barber cape. PO Soland stated that § 87(2)(b) told PO Nika “I’m getting a haircut I don’t want to get hair on me.” PO Nika placed § 87(2)(b)’s identification on his lap. PO Soland saw PO Nika place the identification on § 87(2)(b)’s lap. PO Nika did not tell § 87(2)(b) “I don’t have to do this shit” and did not throw the identification at § 87(2)(b) and he did not see any other officer do this. PO Soland did not hear PO Nika tell § 87(2)(b) “I don’t have to do this shit” nor did he see PO Nika throw § 87(2)(b)’s identification at his chest. PO Nika raised his voice during the conversation in order to speak over the loud volume in the barbershop. PO Soland stated that PO Nika remained calm throughout the entire conversation with § 87(2)(b).

Patrol Guide Procedure 203-09 states that all uniformed members of service must be courteous and respectful (Board Review 04).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Squad: 2

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date